

25VECV06407 25VECV06407

County: los-angeles

Division: Civil Law and Motion

Department: 107

Hearing date: 2026-07-20

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAV%2C107%2C07%2F20%2F2026

Source SHA-256: 1dc3363b7b848c93325295d27946cb24a57e2145991870abf7f6b59513bd92c7

Case Number: 25VECV06407 Hearing Date: July 20, 2026 Dept: 107

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Bilaal

Salaam,

Plaintiff.

v.

Jada

Pinkett Smith,

Defendant.

Case Number Department

25VECV06407 107

COURT'S [TENTATIVE]
ORDER RE:

Motion Judicial

Determination of

Protective Order

Disputes and Entry of Plaintiff's

Proposed Protective

Order

[THE

FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]: Deny

I.

BACKGROUND

On

November 7, 2025, Plaintiff Bilaal Salaam aka Brother Bilaal ("Plaintiff") filed a complaint against Defendant Jada Pinkett Smith ("Defendant") alleging three causes of action for intentional infliction of emotional distress.

On

February 5, 2025, Defendant filed a special motion to strike under CCP section 425.16 (Anti-SLAPP motion) (the "Anti-SLAPP Motion").

On

April 13, 2026, the court denied the Anti-SLAPP Motion, in part, and granted it, in part. (04/13/26 Minute Order p. 17.)

On

June 12, 2026, Plaintiff filed a motion for judicial determination of protective order disputes and entry of Plaintiff's proposed protective order (the "Motion"). On July 7, 2026, Defendant filed an opposition. On July 13, 2026, Plaintiff filed a reply.

II.

MEET

AND CONFER

Motions

for a protective order must be accompanied by a meet and confer declaration. (Code Civ. Proc., §§ 2031.060, subd. (a), 2030.090, subd. (a), 2025.420, subd. (a).) "A meet and confer declaration in support of a motion shall state facts

showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a).

Plaintiff

states they “transmitted meet and confer correspondence” and attaches copies of that correspondence as Exhibit B. (Salaam Declaration ¶ 2.) Defendant’s counsel responded by email and letter. (Salaam Declaration ¶ 3.)

Code

of Civil Procedure section 2016.040, subdivision (a) requires meeting and conferring in person, by telephone, or by videoconference. Meeting and conferring by email and letter are insufficient. Thus, Plaintiff did not satisfy the meet and confer requirement.

III.

LEGAL

STANDARD

Code

of Civil Procedure section 2031.060, subdivision (a) states, in relevant part: “[w]hen an inspection, copying, testing, or sampling of documents, tangible things, places, or electronically stored information has been demanded, the party to whom the demand has been directed, and any other party or affected person, may promptly move for a protective order.” Code of Civil Procedure section 2031.060, subdivision (b) states, in relevant part: “[t]he court, for good cause shown, may make any order that justice requires to protect any party or other person from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.”

Code

of Civil Procedure section 2030.090, subdivision (a) states, in relevant part: “[w]hen interrogatories have been propounded, the responding party, and any other party or affected natural person or organization may promptly move for a protective order.” Code of Civil Procedure section 2030.090, subdivision (b) states, in relevant part: “[t]he court, for good cause shown, may make any order that justice requires to protect any party or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.”

Code

of Civil Procedure section 2025.420, subdivision (a) states, in relevant part: “[b]efore, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order.” Code of Civil Procedure section 2025.420, subdivision (b) states, in relevant part: “[t]he court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.”

“[T]he

burden is on the party seeking the protective order to show good cause for whatever order is sought.” (Fairmont Ins. Co. v. Superior Court (“Fairmont”) (2000) 22 Cal.4th 245, 255.)

IV.

DISCUSSION

Plaintiff moves for an order entering Plaintiff’s proposed protective order. (Motion p. 2.) Alternatively, Plaintiff moves for a “judicial determination of the specific disputed provisions of Defendant’s proposed order that the parties have been unable to resolve through good-faith meet and confer efforts” and “[a] express finding that the Proposed Protective Order does not apply to testimony, exhibits, or court records already disclosed in prior public judicial proceedings, including Case No. 25VER001692 . . .” (Motion p. 2.)

In opposition, Defendant agrees a protective order should be entered. (Opposition p. 2.) Defendant argues the Los Angeles Superior Court’s standard protective order is sufficient here. (Opposition p. 3.) Defendant further argues Plaintiff’s proposed modifications are not necessary. (Opposition pp. 3-5.)

In reply, Plaintiff argues Defendant’s opposition is speculative because Defendant cites no evidence showing Plaintiff intends to provide deposition testimony or video to the media or showing Plaintiff improperly disclosed confidential discovery. (Reply p. 4.) Plaintiff further argues Defendant identifies no prejudice that may result from Plaintiff’s proposed language. (Reply p. 7.)

Plaintiff argues good cause exists to enter the proposed protected order because Defendant's proposed order's mechanism to challenge a confidential designation is deficient. (Motion p. 6.) Plaintiff also argues Defendant's testimony in a prior case cannot be retroactively restricted by a protective order. (Motion p. 7.) Plaintiff identifies three disputed provisions in Defendant's proposed protective order. (Motion p. 8.) First, Plaintiff argues Defendant's proposed protective order may designate Plaintiff's own information and information Plaintiff possessed prior to this litigation as confidential. (Motion p. 8.) Second, Plaintiff argues Paragraph 13 of Defendant's proposed protective order does not adequately address a party's right to report information to law enforcement, regulatory agencies, or prosecutorial authorities. (Motion p. 8.) Finally, Plaintiff argues Paragraph 8 in Defendant's proposed protective order "restricts use of Confidential Materials to purposes related to this litigation 'and not for any business or other purpose whatsoever.'" (Motion p. 8.) Plaintiff argues this "restricts Plaintiff from using or discussing information that was produced in discovery but that he independently possessed outside of the discovery process." (Motion pp. 8-9.) Plaintiff argues Plaintiff's proposed protective order resolves these issues. (Motion p. 9.)

It is unclear whether Plaintiff attached Plaintiff's proposed protective order to the Motion. Plaintiff's declaration states it is attached as Exhibit A. (Salaam Declaration ¶ 10.) The page identified as Exhibit A does not appear to contain the full protective order. (Salaam Declaration Ex. A pdf p. 14.) Plaintiff's proposed protective order may be attached as pdf pages 31 to 33.

Plaintiff also failed to attach Defendant's proposed protective order to the Motion. Likewise, Defendant references an "Exhibit A" attached to the opposition. (Opposition p. 2.) But no Exhibit A is attached to Defendant's opposition.

The parties agree a protective order is necessary in this matter. (Motion p. 4; Opposition p. 2.) Plaintiff's concerns surround information Plaintiff possessed prior to the litigation, Plaintiff's right to report information to law enforcement, regulatory agencies, and prosecutorial authorities, and restrictions relating to how the information may be used. (Motion p. 8.) Based on Defendant's opposition, it appears Defendant's proposed protective order is the Los Angeles County Superior Court Model Protective Order. (Opposition p. 3.) Plaintiff identifies no specific language in the Los

Angeles County Superior Court Model Protective Order applying to information Plaintiff possessed prior to the litigation or restricting Plaintiff's right to report information to law enforcement, regulatory agencies, and prosecutorial authorities. The court is not persuaded Plaintiff has shown good cause for Plaintiff's proposed protective order.

Plaintiff also requests a "judicial determination of the specific disputed provisions of Defendant's proposed order that the parties have been unable to resolve . . ." and "[a]n express finding that the Proposed Protective Order does not apply to testimony, exhibits, or court records already disclosed in prior public judicial proceedings, including Case No. 25VERO01692 . . ." (Motion p. 2.)

Plaintiff argues the process to determine whether materials are confidential is insufficient because it is a "reactive remedy." (Motion p. 6.) Plaintiff appears to request the court order testimony from Case No. 25VERO01692 be deemed non-confidential. (Motion p. 7.) Plaintiff argues that the testimony is part of the official public court record. (Motion p. 7.) In opposition, Defendant argues that "Plaintiff's concerns regarding testimony from the prior civil harassment proceeding are . . . misplaced because the proposed order simply does not reach those materials."

Defendant agrees the testimony from Case No. 25VERO01692 is not covered by Defendant's proposed protective order. Thus, there is no dispute here for the court to resolve.

To the extent Plaintiff is requesting the court issue an order determining other testimony, exhibits, or court records are also not confidential, that request is denied. Defendant does not appear to be arguing such testimony, exhibits, or court records are confidential, so this request is premature.

V.

CONCLUSION

For the foregoing reasons, the Motion is denied.

Dated: July 20, 2026 _____ Hon. Eric Harmon

Judge of the Superior
Court